

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

CIVIL REVISION NO. 1917 OF 2012

Ali Hossain being dead his legal heirs:

Ismat Ara and others

...Petitioners

-Versus-

Ali Ahammed

...Opposite Party

Mr. Mohammad Nurul Huda Ansary, Advocate

...for the petitioners

None appears

...for the opposite party

Date of hearing: 21.08.2023

Date of Judgment: 22.08.2023

A.K.M. Rabiul Hassan, J:

This rule is directed against the judgment and order dated 18.04.20212 passed by the learned Additional District Judge, 5th Court, Chittagong in Civil Revision No.179 of 2011 affirming judgment and order dated 24.07.2011 passed by the learned Senior Assistant Judge, Satkania, District-Chittagong in Other Suit No.373 of 2005 rejecting the petition for simultaneous trial of Other Suit No.373 of 2005 and Partition Suit No.298 of 2011 now pending before the Senior Assistant Judge, Satkania, Chattogram.

Facts relevant for disposal of rule, in short, is that the present opposite party as a sole plaintiff filed an Other Class Suit No.370 of

2005 on 28.11.2005 impleading the predecessor of present petitioners along with 16 (sixteen) others as defendants in the court of Senior Assistant Judge, Satkania, Chattogram for declaration of title of the suit land and further declaration that the B.S. Khaitan in the name of the predecessor of defendant Nos.1-6 is wrong, fraudulent, without any basis. Subsequently, on 31.05.2011 defendant No.1 of the said Other Class Suit No.370 of 2005 as plaintiff also filed a Partition Suit No.298 of 2011 in the court of Senior Assistant Judge, Satkania, Chattogram impleading the present opposite party as defendant No.1 and others in respect of the self-same land as described to the schedule of Other class Suit No.373 of 2005. Thereafter, on 24.07.2011, the predecessor of the present petitioners as defendant No.1 filed an application for fixing the date of the two suits simultaneously hearing both the suits to avoid conflicting decision of both the suits (পার্শ্ব লিপি মামলার সহিত অত্র মামলা পাশাপাশি দিন ধার্য করতঃ একই সাথে নিষ্পত্তি করার প্রার্থনা) in Other Class Suit No.373 of 2005. Upon hearing of the said application, the learned Senior Assistant Judge, Satkania was pleased to reject the said application vide its order dated 24.07.2011. Being aggrieved by the aforesaid order, the predecessor of the present petitioners as a petitioner filed Civil Revision No.179 of 2011 before the learned District Judge, Chattogram. On transfer, the said revision was heard and disposed of by the learned Additional District Judge, 5th Court, Chattogram, who by his order dated 18.04.2012 rejected the

civil revision and thereby affirmed the order dated 24.07.2011 passed by the trial court. Being aggrieved by the aforesaid order dated 18.04.2012, the defendant No.1 – petitioner has preferred this revisional application before this court under Section 115(4) of the Code of Civil Procedure and obtained the instant Rule on granting leave.

Mr. Mohammad Nurul Huda Ansary, the learned Advocate appearing on behalf of the petitioners submits that both the courts below failed to appreciate the contentions of the application for simultaneous hearing of both suits. As the aforesaid two suits are pending before the same court and the parties are the same, it is very pertinent to hear the suit simultaneously to avoid conflicting decisions. He further submits that the present opposite party No.1 as a sole plaintiff filed Other Suit No. 373 of 2005 for the declaration of title of the suit land as described in Schedule No.1 - 4 to the plaint, which is also attracted with the schedule of Partition Suit No.298 of 2011 filed by the predecessor of the present petitioner.

He further submits that aforesaid two suits are pending before the same court and though both the suits are in a different stage, the contesting parties of both the suits are the same, so a simultaneous hearing of both suits is required by fixing the same date, which will be a proper and effectual disposal of the suits causing no harm to either of the parties. In support of his contention, he relied on the case of *Nurujjaman and others (Md.) vs Md. Sajjad Ali and others*, reported

in 56 DLR 149, wherein it has been stated that both the parties are litigating about the same suit land for a decree of declaration it is desirable that both suits should be tried analogously by the same court.

No one appears to oppose the rule.

Heard the learned Advocate for the petitioner and perused the materials on record.

Upon perusal of the record, it transpires that the aforesaid two suits are very old and now pending for disposal before the same court for a long time. The parties are very much reluctant to dispose of the suits expeditiously and the present petitioners have filed the revisional application before this court long ago and in the meantime 11 (eleven) years have already gone. On being asked the learned Advocate for the petitioners informed this court that the Other Suit No.373 of 2005 is in the stage of the final hearing and the next date of the Partition Suit No.298 of 2011 is fixed on 06.11.2023 for S.R. from which it appears that serious negligence has been occurred in disposing of the aforesaid two suits by the respective parties.

It further appears that at the time of issuance of this Rule, no order of stay had been passed to any of the suits, so by this time the aforesaid two suits ought to have been disposed of but unfortunately, that had not been done as yet. Moreover, the learned Advocate for the petitioners failed to make any positive answer as to the delay that

occurred in disposing of the aforesaid two suits. However, the present petitioners filed the application for the simultaneous trial of Other Suit No.373 of 2005 and Partition Suit No.298 of 2011 stating the reasons why both suits ought to have been heard simultaneously. Upon perusal of the said application, this court thinks fit that ends of justice would be met if both the suits are tried and disposed of by simultaneous hearing i.e. fixing the date of the aforesaid two suits on the same date because the same is pending before the same court and it would be more convenient and beneficiary for both the parties as well as avoided conflicting decision in disposal of both the suits. But, the trial of the aforesaid suit would be independent.

Under the reasoning and discussions above, this court is inclined to dispose of the instant rule by giving direction to the trial court below to dispose of both suits simultaneously by fixing the same date of the respective suits and the trial of both suits would be held independently.

As a result, the instant Rule is disposed of.

The judgment and order passed by the courts below are hereby set aside. The trial court is hereby directed to dispose of both the suits on simultaneous hearing expeditiously from receipt of a copy of the judgment and order of this court without giving any unnecessary adjournment to either of the parties and the trial of aforesaid two suits would be held independently.

The petitioners are directed to pay a cost of Tk.5,000/- (Taka Five Thousand) to be paid to the present opposite party within 15 (fifteen) days from receiving the copy of this order by the concerned court, failing which the Rule shall stand discharged.

Communicate a copy of this judgment to the court concerned at once.

(A.K.M. Rabiul Hassan, J)